

		Plaintiff did not “lend” the value of products it never provided to Defendant P.D. Electric. Plaintiff’s evidentiary objection Nos. 1-2 are OVERRULED. The remainder of the objections are not material to the disposition of this motion. (Code Civ. Proc., § 437c, subd. (q).) Defendants to give notice.
11	Sanders vs. Pham	<u>Motion for Sanctions</u> 1. Motion for Summary Judgment and/or Adjudication 2. Case Management Conference TENTATIVE RULING: A. General Principles re MSJs A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact” (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (<i>Id.</i>, at p. 851.) A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (Code Civ. Proc. (“CCP”), § 437c(p)(2).) The scope of this burden is determined by the allegations of the plaintiff’s complaint. (<i>FPI Development, Inc. v. Nakashima</i> (1991) 231 Cal.App.3d 367, 381–82 [pleadings serve as the outer measure of materiality in a summary judgment motion]; <i>580 Folsom Associates v. Prometheus Development Co.</i> (1990) 223 Cal.App.3d 1, 18–19 [respondent only required to defeat allegations reasonably contained in the complaint].) A cause of action “cannot be established” if the undisputed facts presented by the defendant prove the contrary of the plaintiff’s allegations as a matter of law. (<i>Brantley v. Pisaro</i> (1996) 42 Cal.App.4th 1591, 1597.) Alternatively, a moving defendant can show that a cause of action “cannot be established” by submitting evidence—such as discovery admissions and responses—that the plaintiff does not have and cannot reasonably obtain evidence to establish an essential element of his cause of action. (<i>Aguilar v. Atlantic Richfield Co.</i> (1995) 25 Cal.4th at 854-55; <i>see also Union Bank v. Super. Ct.</i> (1995) 31 Cal.App.4th 573, 590 [finding

moving defendant may show plaintiff's lack of evidence by factually devoid discovery responses after plaintiff has had adequate opportunity for discovery]; *Scheiding v. Dinwiddie Const. Co.* (1999) 69 Cal.App.4th 64, 80-81 [finding Union Bank rule only applies where discovery requests are broad enough to elicit all such information]; *Weber v. John Crane, Inc.* (2006) 143 Cal.App.4th 1433, 1441-42 [same].)

Once the moving party meets that burden, the burden shifts to the party opposing MSJ to show, by reference to specific facts, the existence of a triable issue as to that affirmative defense or cause of action. (*Id.*; *Villacres v. ABM Industries, Inc.* (2010) 189 Cal.App.4th 562, 575.) To meet this burden, the opposing party must present substantial and admissible evidence creating a triable issue. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 163.) Theoretical, imaginative, or speculative submissions are insufficient to stave off summary judgment. (*Doe v. Salesian Society* (2008) 159 Cal.App.4th 474, 481; *Bushling v. Fremont Med. Center* (2004) 117 Cal.App.4th 493, 510.)

The moving party's papers are to be strictly construed, while the opposing party's papers are to be liberally construed. (*Committee to Save Beverly Highland Homes Ass'n v. Beverly Highland* (2001) 92 Cal.App.4th 1247, 1260.)

B. First Cause of Action (Professional Negligence) – DENY

Plaintiff alleges that Defendant negligently performed the placement of his permanent crown on August 6, 2021, causing Plaintiff numbness in his face.

The elements for a cause of action for professional negligence are the same as that of negligence: (i) that defendants had a legal duty to use due care; (i) a breach of such legal duty; and (iii) the breach as the proximate or legal cause of the resulting injury. (*Flowers v. Torrance Memorial Hosp. Med. Ctr.* (1994) 8 Cal.4th 992, 997-998; *Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917.)

MICRA (the Medical Injury Compensation Reform Act) defines "professional negligence" as "a negligent act or omission to act by a health care provider in the rendering of professional services, which act or omission is the proximate cause of a personal injury or wrongful death, provided that the services are within the scope of services for which the provider is licensed and which are not within any restriction imposed by the licensing agency or licensed hospital." (Bus. and Prof. Code, § 6146(c)(3); see also *Central Pathology Service Med. Clinic, Inc. v. Super. Ct.* (1992) 3 Cal.4th